

Ram Chandar @ Ram Chandar Pasi v. Executive Engineer, Electricity Supply Division 4th, Pratapgarh

High Court of Judicature at Allahabad · Lucknow Bench · 14 July 2026 · Writ-C No. 5879 of 2026 · **Writ disposed of; apply under Clause 6.5; reasoned order in eight weeks.**

HEADNOTE

After the District Consumer Commission dismissed a deficiency complaint with liberty to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and receipt of a later application was disputed, the High Court declined to quash a 2015 demand on merits and disposed of the writ by allowing a fresh Clause 6.5 application within two weeks, directing the authority to hear the consumer and pass a reasoned order within eight weeks.

FACTUAL SUMMARY

Ram Chandar challenged a demand notice dated 25 May 2015 of the Executive Engineer, Electricity Supply Division 4th, Pratapgarh, and sought a mandamus to decide his 25 August 2025 representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He had earlier complained of deficiency in service before the District Consumer Disputes Redressal Commission, Pratapgarh, which dismissed the complaint on 25 June 2025 with liberty to apply under Clause 6.5. He said he applied on 25 August 2025; the licensee denied receipt.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-application

HOLDING

Without examining the 2015 demand on merits, and noting the consumer forum's earlier liberty and the dispute over receipt of a Clause 6.5 application, the Court disposed of the writ by granting two weeks to apply under Clause 6.5 of the Code of 2005 and directing the authority to hear the consumer and pass a reasoned order within eight weeks of filing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 25 MAY 2015 WAS LIABLE TO BE QUASHED.

¶ 2

NOT DECIDED — WHETHER THE REPRESENTATION DATED 25 AUGUST 2025 HAD IN FACT BEEN RECEIVED BY THE LICENSEE.

¶ 3